

May 1, 2019



Proposal for Commissioning Services

VIA E-MAIL:

Chris Coad

coadc@bbhcsd.org

David Riley

rileylaw@roadrunner.com

Chris Coad
Director of Business Services
Brecksville Broadview Heights City School District
6638 Mill Road
Brecksville, Ohio 44141

RE: Design Review Commissioning Services for the New Elementary School Project

Dear Mr. Coad,

ECO Commissions ("Consultant") is pleased to submit the following proposal to Brecksville Broadview Heights City School District Board ("Client").

PROJECT: BBHCSD New Elementary School

LOCATION: Oaks Road, Brecksville, OH 44141

OBJECTIVE

To provide commissioning design review services for the project pursuant to the standards of the OFCC contained within the provided commissioning scope of work document (Section 3.7). These services will be performed to establish that the building is being designed in accordance with the owner's project requirements. These services are to be performed on select systems or equipment as identified below.

SCOPE OF SERVICES

Building systems within the commissioning scope of the proposal include:

1. HVAC and Controls
2. Domestic Hot Water
3. Daylighting and Lighting Controls
4. Building Enclosure
5. Electrical Power Systems: Normal (Main to Sub-Panel) and Emergency Power System

Commissioning services to be provided will include:

1. Design Phase
 - a. Perform a single commissioning design review for the DD phase of drawings.
 - b. Provide value engineering suggestions.

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- c. Attend design review and/or value engineering meetings where comments or suggestions are being discussed.

DELIVERABLES

The following is a list of deliverables for the project:

1. Design Review



EXCLUSIONS AND ASSUMPTIONS

Our fee is based on the following exclusions and assumptions:

1. Assumed all work, including meetings, can be done during normal business hours.

FEE PROPOSAL

ECO Commissions proposes to provide the scope of services for this project for a fee of **\$2,500.00 (Two Thousand Five Hundred Dollars)**. Fees will be billed progressively as work is completed. These costs do not include any fees for scope not listed. Hourly rate based fees and Additional Services, if required, will be charged at the following current standard hourly rates:

Principal	\$205	Technician	\$155
Commissioning Authority	\$175	Office Administrator	\$90

I trust this proposal meets your requirements. I look forward to finalizing this process.

Sincerely,



Matthew J. Nelson, PE, LEED AP, CPMP, CEM
Managing Principal
ECO Commissions

AUTHORIZED ACCEPTANCE

The undersigned accepts this Proposal for Commissioning Services. This Proposal and the Terms and Conditions constitute the entire agreement between the parties. Fixed fees and terms of this Proposal shall be valid for 90 days from the date of this Proposal.

_____ Name (printed / typed)	_____ Title	_____ Signature	_____ Date
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TERMS & CONDITIONS

Fee. The total fee, except stated lump sum, shall be understood to be an estimate, based upon Scope of Service, and shall not be exceeded by more than ten percent, without written approval of the Client. Where the fee arrangement is to be on an hourly basis, the rates shall be those that prevail at the time services are rendered. Reimbursable expenses will include a mark-up of 1.10%.

Billings/Payments. Invoices for services and reimbursable expenses shall be submitted, at the Consultant's option, either upon completion of the services or on a monthly basis. Invoices shall be payable within 30 days after the invoice date. A service charge of 1.5% (or the maximum legal rate) per month will be applied to the unpaid balance after 30 days from the invoice date. Consultant shall have the right to suspend/terminate services if payment is not received within 60 days after the invoice date and the Consultant shall have no liability for any resultant delays or damages incurred by Client as a result of such suspension/termination. Retainers shall be credited on the final invoice. The Client agrees to pay all costs of collection, including reasonable attorney's fees.

Standard of Care. In providing services under this agreement, the Consultant will endeavor to perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Consultant will perform its services as expeditiously as is consistent with professional skill and care and the orderly progress of Consultant's part of the Project. Regardless of any other term or condition of this Agreement, Consultant makes no express or implied warranty of any sort. All warranties, including warranty of merchantability or warranty of fitness for a particular purpose, are expressly disclaimed.

Consequential Damages. Notwithstanding any other provision to the contrary, and to the fullest extent permitted by law, neither the Client nor the Consultant shall be liable to the other for any incidental, indirect or consequential damages arising out of or connected in any way to the Project or this Agreement. This mutual waiver of consequential damages shall include, but not be limited to, loss of use, loss of profit, loss of business or income or any other consequential damages that either party may have incurred from any cause of action whatsoever.

Hazardous Materials/Mold. The Consultant shall have no responsibility for the discovery, presence, handling, removal, disposal or exposure of persons to hazardous materials of any form including mold. The Consultant shall have no responsibility for an existing or constructed building that may, as a result of post-construction, use, maintenance, operation or occupation, contain or be caused to contain mold substances which can present health hazards and result in bodily injury, property damage and/or necessary remedial measures and costs.

Indemnifications. The Client agrees, to the fullest extent permitted by law, to indemnify and hold Consultant and its subconsultants harmless from and against any and all damage, losses or cost (including reasonable attorneys' fees and defense costs) caused in whole or in part by its acts, errors or omissions and those of anyone for whom they are legally liable. The Consultant further agrees, subject to Risk Allocation below, to indemnify the Client for damages arising from its own negligent errors acts or omissions.

Risk Allocation. In recognition of the relative risks and benefits of the Project to both the Client and the Consultant, the Client agrees, to the fullest extent permitted by law, to limit the Consultant's total liability to the Client or anyone making claims through the client, for any and all damages or claim expenses (including attorney's fees) arising out of this Agreement, from any and all causes, to the total amount of \$2,000 or the amount of the Consultant's fee, whichever is greater.

Termination of Services. This agreement may be terminated upon 10 days written notice by either party should the other fail to perform their obligations hereunder. In the event of termination, the Client shall pay the Consultant for all services rendered to the date of termination, all reimbursable expenses, and reasonable termination expenses.



Betterment. If a required item or component of the Project is omitted from the Consultant's documents, the Consultant shall not be responsible for paying the cost required to add such item or component to the extent that such item or component would have been included or required in the Consultant's original documents. In no event will the Consultant be responsible for any costs or expense that provides betterment or upgrades or enhances the value of the Project.

Ownership of Documents. All documents produced by the Consultant under this agreement, including electronic files, shall remain the property of the Consultant and may not be used by this Client for any other purpose without the written consent of the Consultant. Any such use or reuse shall be at the sole risk of Client who shall defend, indemnify and hold the Consultant and its subconsultants harmless from any and all claims and/or damages arising therefrom. Electronic files are not contract documents and cannot be relied upon as identical to contract documents because of changes or errors induced by translation, transmission, or alterations while under the control of others. Use of information contained in the electronic files is at the user's sole risk and without liability to Consultant and its consultants.

Defects in Service. The Client shall promptly report to the Consultant any defects or suspected defects in the Consultant's services. The Client further agrees to impose a similar notification requirement on all contractors in its Client/Contractor contract and shall require all subcontracts at any level to contain a like agreement. Failure by the Client and the Client's contractors or subcontractors to notify the Consultant shall relieve the Consultant of the costs of remedying the defects above the sum such remedy would have cost had prompt notification been given when such defects were first discovered.

Construction Activities. The Consultant shall not be responsible for the acts or omissions of any person performing any construction Work or for instructions given by the Client or its representatives to any one performing any construction Work, nor for construction means and methods or job-site safety.

Dispute Resolution. Any claim or dispute between the Client and the Consultant shall be submitted to non-binding mediation, subject to the parties agreeing to a mediator. If the Parties cannot agree upon a mediator the claim or dispute shall be submitted to the American Arbitration Association (AAA) for mediation in accordance with the Construction Arbitration and Mediation Rules of the AAA then in effect.

Relationship of the Parties. All services provided by Consultant are for the sole use and benefit of the Client. Nothing in this Agreement shall create a contractual relationship with or a cause of action in favor of a third party against either the Client or the Consultant.

Entire of Agreement. This Agreement constitutes the entire agreement between the parties and these Terms & Conditions may only be amended by written agreement by both parties. Should any portion of this Agreement is found to be illegal or enforceable, such portion shall be deleted and the balance shall remain in effect.

Applicable Law. The law applicable to this Agreement is the state of the Project location.

Commissioning Services. In consideration of the Consultant performing Commissioning services for the Project, the Client agrees that the Consultant is entitled to rely upon the accuracy and completeness of all information provided by or through the Client to the Consultant. The Consultant shall not be responsible in any way for errors or omissions contained in any drawings or specifications by others in incorporating the Consultant's recommendations into the reports, drawings or specifications. Additionally Client shall require consultants or contractors retained by Client to coordinate their services and documents with those of the Consultant's and its subconsultants. The Client agrees to waive all claims against the Consultant arising from the services provided by others on the Project or provided by the Consultant under this Agreement, except to the extent arising from the negligence or willful misconduct of the Consultant. In addition, the Client agrees, to the fullest extent permitted by law, to indemnify, defend and hold harmless the Consultant from all damages, liabilities or costs, including reasonable attorney's fees and defense costs, arising or allegedly arising from the services performed by others on the Project under this Agreement.